

Court No. - 21

Case :- WRIT - C No. - 10541 of 2023

Petitioner :- Mohd. Naseem

Respondent :- State Of U.P. And 4 Others

Counsel for Petitioner :- Suresh Singh

Counsel for Respondent :- C.S.C., Vidhu Prakash Pandey

Hon'ble Manoj Kumar Gupta, J.

Hon'ble Umesh Chandra Sharma, J.

List on 5.4.2023 as a fresh case showing name of Sri Narendra Kumar Tiwari as counsel for the respondent-electricity department and not Sri Vidhu Prakash Pandey.

Order Date :- 31.3.2023

skv

(Umesh Chandra Sharma, J.) (Manoj Kumar Gupta, J.)

Court No. - 21

Case :- WRIT - C No. - 10541 of 2023

Petitioner :- Mohd. Naseem

Respondent :- State Of U.P. And 4 Others

Counsel for Petitioner :- Suresh Singh

Counsel for Respondent :- C.S.C.,Narendra Kumar Tiwari

Hon'ble Manoj Kumar Gupta,J.

Hon'ble Prashant Kumar,J.

The petitioner has challenged the recovery citation dated 15/02/2023 issued by respondent No.3 for recovery of electricity dues.

The petitioner has stated in the petition that he is ready to pay the correct amount to the respondents, meaning thereby that he is disputing the correctness of the bills issued to him.

Sri N.K. Tiwari, learned counsel appearing for the respondent-Electricity Department states that the dispute can be decided under Clause 6.5 of the U.P. Electricity Supply Code, 2005.

Accordingly, the petition is disposed of with liberty to the petitioner to file objection before respondent No.3 within two weeks from today and in which event he will decide the same by means of a speaking order.

For a period of six weeks, the impugned recovery shall remain in abeyance and will thereafter abide by the decision that shall be taken by respondent No.3 on the objection of the petitioner.

Order Date :- 5.4.2023

skv

(Prashant Kumar, J.) (Manoj Kumar Gupta, J.)